

VA.2 Permit Application Checklist

Everything a Virginia owner-builder gathers, verifies, and files — with the four state-level gates that stop an application cold, and the one optional line that protects you.

Before you use this document

This is a process reference, not legal advice. Virginia has one statewide building code, but every county, city, and town enforces it through its own local building department, with its own forms, fees, and portal. Confirm every item with the building department that will issue your permit before you rely on it.

THE FOUR GATES SET BY STATE LAW

Most of what your locality asks for is local. These four are not — they are conditions Virginia law places on your project, and no county, city, or town can waive them. Clear these before you worry about anything else.

- **1. The exemption statement** — a written statement, supported by an affidavit, that you are not subject to contractor licensure. The building official may not lawfully issue the permit without it. (§ 54.1-1111; see VA.1)
- **2. Septic approval first** — on an unsewered lot, the building official may *"refuse to issue a permit until the applicant has supplied certificates of functional design approval from the appropriate state agency"* — and sewage disposal is on that list. (USBC § 103.5; § 32.1-164(B)(1))
- **3. Land-disturbance approval** — no land-disturbing activity may begin until the local erosion/stormwater authority has issued its approval; for a single detached house an "agreement in lieu of a plan" replaces the engineered plan. (§ 62.1-44.15:34(A))
- **4. The VDOT entrance permit** — *"No entrance of any nature may be constructed within the right-of-way until the location has been approved by VDOT and an entrance permit has been issued."* Most rural Virginia driveways connect to a VDOT road. (24VAC30-73-60(A))

The lien agent line — the option you should probably take

Virginia puts a mechanics' lien agent line on every one- or two-family dwelling permit — included *"at the request of the applicant,"* and if you do not request one, the permit must say **"None Designated"** (§ 36-98.01). Take the option: with an agent on the permit, anyone who wants lien rights must notify the agent *"within 30 days of the first date that he performs labor or furnishes material,"* and a late notice limits the lien *"to labor performed or materials furnished on or after the date a notice is given"* (§ 43-4.01).

Without an agent on the permit, a supplier your subcontractor never paid can surface months later with lien rights you never saw coming. The agent must be a Virginia attorney, a title insurance company (or its subsidiary or licensed agents), or a financial institution authorized to

accept deposits (§ 43-1) — your closing attorney or title company is the usual choice. There is no separate state form; it is a field on the permit application. See VA.5.

A. SITE AND PROJECT VERIFICATION

A1: Before anything else

	Item	Date	Notes / who confirmed
☐	Confirmed which locality issues your permit — county, city, or town (see VA.4)		
☐	Parcel identification number and 911 address confirmed Parcel ID: _____ Address: _____		
☐	Deed recorded in your name — you must own the residence to claim the exemption		
☐	Zoning district and permitted use verified with planning/zoning		
☐	Required setbacks confirmed in writing Front: _____ Side: _____ Rear: _____ Other: _____		
☐	Easements, rights-of-way, and recorded restrictions identified		
☐	Flood zone checked on the FEMA FIRM map for the parcel; if in a mapped floodplain, asked the locality's floodplain administrator whether a local floodplain development permit applies		
☐	Chesapeake Bay Preservation Area status asked about — it drops the erosion-control trigger to 2,500 sq ft (see section D)		
☐	HOA or covenant approval obtained if applicable — private, not governmental; the locality will not check it for you		

Floodplain: Virginia has no single statewide floodplain permit — the USBC/VRC flood provisions and local floodplain zoning ordinances tied to the NFIP govern, so the check is the FIRM map plus your locality's floodplain administrator. DCR is Virginia's NFIP coordinator (dcr.virginia.gov). Verified August 2026.

B. THE APPLICATION PACKAGE

The USBC requires that "*application for a permit shall be made to the building official and a permit shall be obtained prior to the commencement*" of the work — and you may file it yourself: the applicant may be "*the owner or lessee of the relevant property or the agent of either or by the RDP, contractor, or subcontractor associated with the work or any of their agents*" (USBC § 108.1). One curiosity worth knowing: one-story detached sheds with a building area up to **256 square feet** need no permit at all (§ 108.2).

B1: Forms and proofs

	Item	Date	Notes
☐	Building permit application, completed and signed — the form is your locality's own; there is no statewide version		
☐	Owner exemption statement + affidavit, per § 54.1-1111 — expect to notarize		
☐	Mechanics' lien agent designated on the application — or the permit will read "None Designated" Agent: _____ Date: _____		
☐	Estimated construction cost stated — this usually sets the fee Stated cost: \$ _____		
☐	Separate trade permit applications identified: electrical, plumbing, mechanical (some localities combine them; ask)		
☐	Fee schedule obtained with the application — fees are set locally under § 36-105(B)		

B2: Plans and supporting drawings

	Item	Date	Notes
☐	Complete plan sets in the count and format your locality requires — many Virginia localities now take digital submission		
☐	Site plan showing property lines, setbacks, the building footprint, the driveway entrance, well and septic locations, and any easements		
☐	Foundation plan, floor plans, elevations, wall sections, and a framing plan		
☐	Electrical, plumbing and mechanical layouts as your locality requires		

B2: Plans and supporting drawings

	Item	Date	Notes
☐	Energy code compliance documentation (see section E) Prepared by: _____		
☐	Engineered or manufacturer specifications for anything non-standard — trusses, ICF, SIPs, long spans, steep-slope foundations		

You do not need an architect for house plans

Virginia's architect-licensing law lets non-licensees prepare plans for *"single- and two-family homes, townhouses, and multifamily dwellings, excluding electrical and mechanical systems, not exceeding three stories"* — the plans must identify who drew them and that person's occupation. (§ 54.1-402(A)(1)) If you are told your plans need a seal, ask which provision requires it.

The clocks on your application and permit. Virginia sets no fixed day-count for residential plan review — the USBC requires the building official to examine the application *"within a reasonable time after filing"* (§ 110.1), so ask your department its current turnaround and budget for it. Once issued, *"a permit shall be considered abandoned if work is not commenced within six months after issuance or if authorized work is suspended or abandoned for a period of six months"* — with extensions available up to one year per request (§ 110.6). And § 110.7 gives single-family dwelling permits a three-year completion window from issuance, extendable on a showing of substantive progress — that last sentence is a paraphrase of the section, not quoted text; read § 110.7 itself before you rely on the details.

USBC § 108.1, § 108.2 (13VAC5-63-80); § 110.1, § 110.6, § 110.7 (13VAC5-63-100); § 54.1-402(A)(1); § 36-105(B). Verified August 2026.

C. SEPTIC AND WELL — THE HEALTH DEPARTMENT, NOT THE BUILDING OFFICE

On-site sewage and private drinking water wells are permitted by the **Virginia Department of Health through your local health department**, on a different track and a different timeline from your building permit. The rule is absolute: *"No person or owner shall construct, operate, expand or modify a sewage disposal or handling system without a written permit from the commissioner"* (12VAC5-610-240), and state law requires *"a permit from the Commissioner prior to the construction, installation, modification or operation of a sewerage system"* (§ 32.1-164(B)(1)). Start this before anything else — before you buy the land, if you still can.

Your building permit can be held for this — statewide

USBC § 103.5 lets the building official *"refuse to issue a permit until the applicant has supplied certificates of functional design approval from the appropriate state agency"* — and water supply and sewage disposal are on that functional-design list. On an unsewered lot, VDH approval comes first. There is no path around VDH.

The private-sector shortcut, and its shot clock. You do not have to wait for a health-department evaluation: VDH *"shall accept private site evaluations and designs ... designed and certified by a licensed professional engineer, in consultation with a licensed onsite soil evaluator, or by a licensed onsite soil evaluator"* (OSE). And on a single-lot submission the department must act *"within 15 working days"* — issue the permit or approval, or set out its reasons for denial in writing — or *"the designs, evaluations or subdivision reviews shall be deemed approved and the appropriate letter, permit or approval shall be issued."* (§ 32.1-163.5) Hiring an OSE is how most rural builds keep the septic track off the critical path.

C1: Septic and well

	Item	Date	Notes
☐	Determined whether the lot is served by public sewer and water — if both, this section is a connection question for the utility, not VDH		
☐	VDH sewage-system application filed at the local health department — or a licensed OSE/PE hired to evaluate, design, and submit Filed / OSE: _____ Date: _____		
☐	Septic construction permit issued — valid 18 months Permit #: _____ Date: _____		
☐	System type and drainfield location shown on your site plan and consistent with the house footprint		
☐	If an alternative (non-conventional) system: designer and operating requirements confirmed under 12VAC5-613		
☐	Operation permit obtained after installation and final inspection — before the system is used		
☐	Private well construction permit obtained from the local health department before drilling Permit #: _____ Date: _____		
☐	VDH inspection statement received after well completion		

C1: Septic and well

	Item	Date	Notes
☐	Water sampling for the new well asked about at the local health department — who collects, what panel, and when		

Septic permit requirement, application at the local health department, 18-month permit life, and the operation permit: 12VAC5-610-240, -250, -300(A), -340. Alternative systems: 12VAC5-613. OSE/PE acceptance and the 15-working-day deemed-approval clock: § 32.1-163.5. Well permit before construction, local filing, and the completion inspection statement: 12VAC5-630-220(B), -230(A), -330 (regulations amended effective November 6, 2024; text verified post-amendment). Water-quality sampling duties sit in 12VAC5-630-431 — this kit prints no sampling promise because the who-and-when was not verified; ask your health department. Verified August 2026.

D. DRIVEWAY AND EROSION / STORMWATER

Virginia is different about roads. Outside incorporated cities and towns, most public roads are maintained by VDOT, not the county. Unless you are in a city, a town that maintains its streets, or Henrico or Arlington (which run their own roads), assume the road you connect to is VDOT's — and VDOT's rule is a hard gate: *"No entrance of any nature may be constructed within the right-of-way until the location has been approved by VDOT and an entrance permit has been issued."* (24VAC30-73-60(A)) A "private entrance" is one *"that serves up to two private residences and is used for the exclusive benefit of the occupants"*; district administrators or their designees issue the permits, and state law directs the Commissioner to *"permit suitable connections"* from private roads to improved highways (§ 33.2-240). File form LUP-A with the private-entrance schedule LUP-PE at the VDOT district office for your locality — see VA.5.

D1: Driveway access and erosion / stormwater

	Item	Date	Notes
☐	Determined who maintains the road you connect to — VDOT, a city or town, or Henrico/Arlington county		
☐	If VDOT: land use permit applied for (LUP-A + LUP-PE) at the district office before any entrance construction District: _____ Applied: _____		
☐	Entrance location, sight distance, and any pipe/culvert requirements settled with the district permit staff before installing anything		
☐	If locally maintained: the locality's entrance requirements confirmed		

D1: Driveway access and erosion / stormwater

	Item	Date	Notes
☐	Total land disturbance calculated — house, driveway, septic area, staging and spoil piles Total sq ft disturbed: _____		
☐	If 10,000 sq ft or more (2,500 sq ft in a Chesapeake Bay Preservation Area): erosion/stormwater requirements apply		
☐	Agreement in lieu of a plan requested from the local erosion/stormwater (VESMP) office for the single-family build, and executed		
☐	Land-disturbance approval issued — no land-disturbing activity may begin before it		
☐	Asked whether the authority waives the Responsible Land Disturber certificate for an agreement in lieu of a plan		

The erosion/stormwater rule, in the statute's own words. "A person shall not conduct any land-disturbing activity until (i) he has submitted to the appropriate VESMP authority an application that includes a permit registration statement, if required, a soil erosion control and stormwater management plan or an executed agreement in lieu of a plan, if required, and (ii) the VESMP authority has issued its land-disturbance approval." The thresholds: the requirements "shall apply to any activity that disturbs 10,000 square feet or more" — and in a Chesapeake Bay Preservation Area, single-family construction triggers at "2,500 square feet or more." The owner-builder shortcut is the **agreement in lieu of a plan**: a contract between you and the local authority that replaces the engineered plan, available for "a single family detached residential structure with less than one acre of land disturbance" — outright when the house sits outside a common plan of development or sale, and inside one only where the development has an approved stormwater pollution prevention plan (and permit, if required). The authority "may waive the Responsible Land Disturber certificate requirement for an agreement in lieu of a plan."

Entrance permits: 24VAC30-73-60(A), -20(C), -10; § 33.2-240. Erosion/stormwater: § 62.1-44.15:34(A) (prohibition, thresholds, RLD waiver); § 62.1-44.15:24 (agreement in lieu of a plan, defined); 9VAC25-875-530(B) (when the agreement may be used) — the consolidated regulation 9VAC25-875 has been effective since July 1, 2024, administered locally under DEQ oversight. Each locality maintains its own agreement-in-lieu form; ask its erosion/stormwater office. Verified August 2026.

E. CODE EDITION AND ENERGY COMPLIANCE

The **2021 Uniform Statewide Building Code** governs your project. DHCD's own words: "The effective date of the 2021 Uniform Statewide Building Code ... is Jan. 18, 2024" — and since January 18, 2025 it has been the **only** edition a permit may issue under. It incorporates the **2021 IBC, IRC and IECC** and the **2020 National Electrical Code (NFPA 70-20)**. The 2024 code cycle is underway, but DHCD staff guidance says the 2024-based residential code "will

likely be effective in 2027" — nothing about it changes a permit pulled in 2026.

13VAC5-63 and its Documents Incorporated by Reference (13VAC5-63-9999); dhcd.virginia.gov/codes; DHCD 2021 VRC FAQ (updated January 8, 2025). Verified August 2026.

The blower door is mandatory in Virginia — no visual option

Every new dwelling must be blower-door tested; the visual-inspection alternative was eliminated back in the 2018 energy code. The 2021 standard, as Virginia amends it: *"The building or dwelling unit shall be tested and verified as having an air leakage rate not exceeding five air changes per hour in Climate Zone 4."* That **5 ACH50** figure is a Virginia amendment — the unamended 2021 IECC would demand 3.0.

Virginia also names who may run the test: *"a Virginia licensed general contractor, a Virginia licensed HVAC contractor, a Virginia licensed home inspector, a Virginia registered design professional, a certified BPI Envelope Professional, a certified HERS rater, or a certified duct and envelope tightness rater."* Book one before drywall is scheduled, not after.

Virginia spans Climate Zones 3 and 4 under the 2021 code. The companion provision extends the 5-ACH50 rate to the Zone 3 localities per the regulation's text, but this kit did not verify that sentence verbatim — if your locality is in Zone 3, **confirm your zone and your target number with your building department** before you order the test.

13VAC5-63-264, provisions R402.4.1.2 and R402.4.1.3 (VRC N1102.4.1.2/.3). Verified August 2026.

Ceilings jumped to R-60. DHCD confirms it in writing: *"The minimum insulation R-Value for ceilings in Climate Zones 3 and 4 increased from 49 in the 2018 VRC, to 60 in the 2021 VRC."* DHCD also notes the 2024 IRC later walked that back — but R-60 governs your 2026 permit unless your building official approves a code modification under VCC 106.3. Price the extra insulation into the plan rather than fighting it at final.

Duct testing is required too. Duct leakage testing has been required in Virginia since the 2018 energy code and continues under the 2021 edition, and the paper matters: *"A written report of the results of the test shall be signed by the party conducting the test and provided to the code official."* This kit does not print the test's trigger conditions or exceptions — in particular, do **not** assume ducts inside the conditioned envelope are exempt. Ask your building department which duct tests apply to your system, and get the answer before the mechanical rough-in.

E1: Energy code

	Item	Date	Notes
☐	Climate zone for your locality confirmed with the building department Climate zone: _____		
☐	Insulation R-values for walls, ceiling (R-60 in Zones 3 and 4) and floors shown on the plans		

E1: Energy code

	Item	Date	Notes
☐	Window and door U-factor and SHGC values documented		
☐	Blower-door test booked with a tester from the permitted categories — target 5 ACH50 in Zone 4 Tester: _____ Result: _____		
☐	Duct leakage testing scope confirmed with the building department; test arranged Tester: _____ Result: _____		
☐	Signed written test reports delivered to the code official before final		

Code edition and R-60: 13VAC5-63; DHCD 2021 VRC FAQ; VRC § N1102.1.3; modification authority VCC 106.3. Blower door and duct testing: 13VAC5-63-264 (R402.4.1.2/.3, R403.3.3-R403.3.5). Verified August 2026 — confirm your department's practice before you submit.

One footnote if you are demolishing first: Virginia's permit-time asbestos certification (§ 36-99.7) applies only to renovating or demolishing a building whose initial permit predates January 1, 1985 — and even then single-family dwellings are excepted. It is not a gate on your new house; it only surfaces if you are taking down an old non-dwelling structure on the lot first.

Application filed: _____ Permit issued: _____ Permit #: _____

Sources — every Virginia claim in this document (verified August 2026)

What this document states	Authority
Permit before work begins; the owner may apply personally; 256 sq ft shed exemption	USBC § 108.1, § 108.2
Owner exemption statement + affidavit; official may not issue without it	§ 54.1-1111
Lien agent line on every 1-2 family permit at the applicant's request, else "None Designated"	§ 36-98.01
Who may serve as lien agent; 30-day notice or the lien is limited to later work	§ 43-1; § 43-4.01
No architect seal required for 1-2 family plans to three stories	§ 54.1-402(A)(1)
Review "within a reasonable time" — no fixed day-count; six-month abandonment, extensions to one year; three-year completion window (paraphrase)	USBC § 110.1, § 110.6, § 110.7

Sources — every Virginia claim in this document (verified August 2026)

What this document states	Authority
Building official may hold the permit for functional-design (septic/water) approval	USBC § 103.5; § 32.1-164(B)(1)
No septic construction without a written VDH permit; 18-month permit life; operation permit after inspection	12VAC5-610-240, -300(A), -340
Private OSE/PE evaluations must be accepted; 15 working days or deemed approved	§ 32.1-163.5
Private well construction permit before drilling; inspection statement on completion	12VAC5-630-220(B), -330
No land disturbance before land-disturbance approval; 10,000 sq ft threshold; 2,500 in a CBPA; RLD waiver	§ 62.1-44.15:34(A)
Agreement in lieu of a plan for a single-family detached house	§ 62.1-44.15:24; 9VAC25-875-530(B)
No entrance constructed in the right-of-way without VDOT approval and a permit; district staff issue	24VAC30-73-60(A), -20(C)
Suitable private connections to improved highways shall be permitted	§ 33.2-240
2021 USBC effective Jan. 18, 2024; sole edition since Jan. 18, 2025; 2021 I-Codes + 2020 NEC	13VAC5-63; dhcd.virginia.gov
2024-based residential code likely 2027	DHCD 2021 VRC FAQ
Ceiling R-60 in Climate Zones 3 and 4	DHCD FAQ; VRC N1102.1.3
Blower door mandatory, 5 ACH50 in Zone 4; seven eligible tester categories; signed duct-test report to the official	13VAC5-63-264
Asbestos certification: pre-1985 renovation/demolition only; single-family dwellings excepted	§ 36-99.7

Read any Code of Virginia section cited above at **law.lis.virginia.gov** → Code of Virginia → by section, or directly at law.lis.virginia.gov/vacode/54.1-1101/ with the section number swapped in. Virginia Administrative Code sections (13VAC5-63 and the like) live under law.lis.virginia.gov/admincode. All statute and regulation text verified August 2026.